

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**

Office of City Clerk

March 10, 2020

The Governing Body of the City of Cheyenne convened in a special meeting on this date beginning at 6:00p.m. in City Council Chambers for the purpose of collective labor bargaining with the Cheyenne Professional Fire Fighters, International Association of Fire Fighters, Local No. 279. Present were: MAYOR - Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Mike Luna, Dr. Mark Rinne, Dicky Shanor, and Jeff White. Absent: Bryan Cook, Ken Esquibel, Pete Laybourn, and Scott Roybal. Also present: Kris Jones, City Clerk; Michael O'Donnell, City Attorney; Alessandra McCoy-Fakelman, Deputy City Attorney, Robin Lockman, City Treasurer, and Chief Greg Hoggatt, Fire and Rescue Department. The pledge of allegiance was recited.

Mayor Orr advised the meeting would be audio recorded and available on Facebook live and stated that Wyoming State Statute §16-4-405(a)(x) of the Public Meetings Act allows the governing body to meet in executive session to consider or tender offers regarding salaries, wages or other terms and conditions of employment during negotiations with the fire fighters union and that any motion approved by the governing body to move into executive session during the special meetings would be pursuant to this section of statute. Mayor Orr further advised if the governing body met in executive session, they would be meeting in the Mayor's Conference Room, and that Fire Union representatives were welcome to use Committee Room 104 for the purpose of meeting to caucus.

Michael O'Donnell, City Attorney, advised the City and Union would be signing off on the closed agreed upon sections prior to the City presenting its counteroffer to Union representatives. Sections closed include: 1-Parties, 2-Definitions, 5-Separability, 6-Embodiment of Agreement, 7-Re-Negotiations, 9-Non-Discrimination, 10-Annexation of Areas into the City, 11-Voluntary Demotion, 12-Union Representation, 14-Strikes, 23-Working in a Higher Job Rank, 24-Specialized Emergency Response Teams, 25-Conversion of Benefit Hours, 27-Vacations, 29-Bereavement Leave, 30-Leave of Absence, 31-Health, Dental and Life Insurance, 32-Uniforms, 33-Personal Protective Equipment, 34-Union Dues, 36-Residency, 38-Union Use of City Facilities, 39-Alcohol and Controlled Substance Policy, 40-Family and Medical Leave Policy, 42-Safety and Health, 43-Longevity Pay, and 44-Shift Trainers.

Mayor Orr, upon inquiry from Kevin West, Union Representative, advised additional meetings could be considered, noting the negotiation timeframe ends on March 20, 2020.

Mayor Orr asked that parties involved in the negotiation process exercise caution regarding the Covid-19 virus and to please stay home if they become ill.

Mayor Orr further advised that there will be some occasions where the Union will retreat for the purpose of caucusing and the governing body would either go into Executive Session or recess during those time periods.

Pursuant to Wyoming State Statute §16-4-405(a)(x), Mr. Shanor moved to meet in executive session, seconded by Case. Motion carried. Voting “yes” – all members of the governing body present. Mayor Orr identified, in addition to members of the governing body present, the City Clerk, City Attorney, Deputy City Attorney, City Treasurer, and Chief of the Fire and Rescue Department would also be present at the executive session. [City Clerk note: Audio recording of the special meeting was stopped; executive session convened at 6:13 p.m. in the Mayor’s Conference Room]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 6:22 p.m.

Mayor Orr provided brief summary on each remaining open section relating to the City’s counteroffer. The following Sections contained a revised offer from the City: bundled offer for 15-Department Staffing, 17-Hours of Work, 18-Trading Shifts, 20-Holidays, and 35-Mileage Allowance and individual offers for sections; 3-Exclusive Bargaining Agent, 8-Grievance Procedures, 13-Management Rights, 19-Inclement Weather Conditions, 21-Classsification of Employment and Basic Wages, 22-Overtime, 26-Wellness/Fitness Program, 28-Sick Leave, 37-Time Off for Union Business and 41-Prevailing Rights. Mr. O’Donnell advised the remaining open sections are re-offered as originally offered by the City: Sections 2-Definitions, 23-Working in a Higher Job Rank, 24-Specialized Emergency Response Teams, and 41-Prevailing Rights. (Section 4-Term of Agreement is undetermined at this time of either a 1 or 2 year agreement).

Mayor Orr clarified that although the City supports the concept of forming a “Squad” with personnel for the Fire Department, the City is not including it in the contract at this time. Upon inquiry from Mr. O’Donnell, Mr. West confirmed Sections 46-Military Leave, 47-Tuition Reimbursement and 48-Parental Leave were previously closed.

Upon Union request, Michael O’Donnell, City Attorney, provided details relating to the City’s offer for section #22-Overtime.

Union representatives requested a 30-minute recess to review the City’s counteroffer at 6:34 p.m. Members of the Governing Body stood in recess. Mayor Orr, at the request of Union representatives, granted an extension of time for an additional 20 minutes at 7:02 p.m.

Following the recess, Union representatives provided a verbal explanation of their counteroffer for the remaining open sections.

Pursuant to Wyoming State Statute §16-4-405(a)(x), Mr. Luna moved to meet in executive session, seconded by Case. Motion carried. Voting “yes” – all members of the governing body present. Mayor Orr identified, in addition to members of the governing body present, the City Clerk, City Attorney, Deputy City Attorney, City Treasurer, and Chief of the Fire and Rescue Department would also be present at the executive session. [City Clerk note: Audio recording of the special meeting was stopped; executive Session convened at 7:28 p.m. in the Mayor’s Conference Room]

Following closure of the executive session, Mayor Orr reconvened the special meeting at 7:51p.m.

Mayor Orr explained the City would provide a counteroffer and discuss potential for additional meetings at the next scheduled meeting on Thursday, March 12, 2020.

Mayor Orr stated the purpose of the special meeting had been met. Mayor Orr adjourned the meeting at 7:52 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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